

1.

CASE #	CASE NAME	HEARING NAME
CVPS2508052	FELIPE VS TOLEDO-ROJAS	MOTION TO COMPEL VERIFIED RESPONSES TO REQUESTS FOR PRODUCTION FROM PLAINTIFF ERLIN FELIPE BY RICHARD TOLEDO-ROJAS

Tentative Ruling: Hearing taken off calendar by the court as moot.

This is a motor vehicle accident case. Plaintiff, Erlin Felipe, alleges that on 3/16/25, he was involved in an accident caused by Defendant, Richard Toledo-Rojas, when Defendant made an unsafe left turn into oncoming traffic. Plaintiff sustained damages and permanent injuries due to the accident. He filed his Complaint on 10/17/25 alleging a single cause of action for negligence.

Defendant, Richard Toledo-Rojas (Defendant) brings this motion to compel verified responses to Requests for Production of Documents (Set One). (CCP § 2031.300.) Defendant asserts responses were due on 1/26/26, but Plaintiff failed to respond. Defendant met and conferred, but Plaintiff has still not provided any responses. Defendant seeks monetary sanctions of \$650 for each motion.

Plaintiff, Erlin Felipe, opposes the motions arguing that Defendant was timely served with verified responses, but still filed and served these motions, which are moot. Plaintiff asserts his counsel repeatedly left telephone messages on Defendant's counsel's voicemail, but never heard back and was forced to file an opposition. Thereafter on 5/18/26, when Plaintiff noticed the motions were still on calendar, his counsel left another message and re-sent the responses with a cover letter, but never received a response.

Motion to Compel Response(s)

CCP §2031.300 authorizes a motion to compel responses to requests for production of documents where none have been provided. No meet and confer is required. In general, where a party, who has been served with requests for production of documents, fails to serve a timely response he/she "waives any objection to the interrogatory, including one based on privilege or on the protection for work product."

Defendant served Requests for Production of Documents (Set One) on Plaintiff on 12/23/25. (Dec. Lal ¶ 3, Ex. "A".) Responses were originally due on 1/26/26. (*Id.* ¶ 4.) Defense counsel served a meet and confer letter requesting responses by 2/22/26. (*Id.* ¶ 5, Ex. "B".) Defense counsel declares Plaintiff failed to provide verified responses. (*Id.* ¶ 6.)

Plaintiff declares that Defendant was timely served with verified responses. (Dec. Weinstein ¶ 3.) Mr. Weinstein declares that Plaintiff's 2/10/26 letter provided Plaintiff until 2/20/26 to respond to the outstanding discovery. (*Id.* ¶ 4, Ex. "B".) Plaintiff served his responses on 2/16/26. (*Id.* ¶ 4, Ex. "B".) Nonetheless, these motions were filed. (*Id.* ¶ 3[sic].) Mr. Weinstein repeatedly left telephone messages on defense counsel's voicemail, but he never heard back, and was forced to file the Opposition. (*Id.* ¶ 4 [sic].) When Mr. Weinstein noticed the motions remained on calendar, he telephoned defense counsel leaving another message, and re-sent the responses with a cover letter. (*Id.* ¶ 6 [sic], Ex. "D".) Defense counsel refused to meet and confer in good faith by failing to return Mr. Weinstein's phone calls or to withdraw the motions, which are frivolous and moot. (*Id.* ¶ 7[sic].)

Defendant has not weighed in on his position as to the status of his receipt of the responses. To the contrary, Plaintiff's counsel has demonstrated the responses were timely served, and subsequently were re-served. As a result, this motion is moot.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2508467	CHASE VS SPENCE	DEMURRER ON 1ST AMENDED COMPLAINT FOR QUIET TITLE OF MARVIN H CHASE BY THOMAS L SPENCE, CATHERINE C SPENCE

Tentative Ruling: Sustained.

No opposition filed.

Plaintiff granted leave one additional time to file a 2nd Amended Complaint within 10 days of this order becoming final.

Moving party to provide notice pursuant to CCP 1019.5.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2508467	CHASE VS SPENCE	MOTION TO STRIKE 1ST AMENDED COMPLAINT FOR QUIET TITLE OF MARVIN H CHASE BY THOMAS L SPENCE, CATHERINE C SPENCE

Tentative Ruling: Granted.

No opposition filed.

Paragraph 47, Prayer for Relief "e," and Prayer for Relief "f" punitive damages and injunctive relief are stricken from the 1st Amended Complaint.

Plaintiff granted leave one additional time to file a 2nd Amended Complaint within 10 days of this order becoming final.

Moving party to provide notice pursuant to CCP 1019.5.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2509945	COUNTY OF RIVERSIDE VS TA L.P.	MOTION FOR ORDER FOR PREJUDGMENT POSSESSION BY COUNTY OF RIVERSIDE

Tentative Ruling: Hearing taken off calendar by stipulation and order filed April 29, 2026.